

BC709376 BC709376

County: los-angeles

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MOTIONS TO DEEM REQUEST FOR ADMISSIONS

The Court tenders the following tentative decision in the matter Dr. Iman Sadeghi v. Pinscreen Inc., et al., Los Angeles County Superior Court case number BC709376, set for hearing on August 19, 2026. On January 23, 2026, Dr. Iman Sadeghi (Plaintiff) propounded requests for admissions, set two (RFAs), on Dr. Hao Li and Pinscreen, Inc. (collectively, Defendants). (Zaffos Decl. ¶ 7.) After Plaintiff granted an extension, responses were due on March 6, 2026. (Id. ¶ 9.) Unverified responses were served on March 7. (Id. ¶ 10.) On July 2, 2026, Plaintiff moved to deem RFAs admitted as to Defendants. Defendants served further verified responses on August 6. (Serpik Decl. ¶ 6.)

"If a party to whom requests for admission are directed fails to serve a timely response . . . [that] party waives any objection to the requests." (Code Civ. Proc., § 2033.280, subd. (a).) "The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted." (Id., § 2033.280, subd. (b).) The Court shall grant an order deeming RFAs admitted unless the responding party serves substantially compliant responses before the hearing on the motion. A finding of substantial compliance depends on "whether answers in a proposed response are 'as complete and straightforward' as reasonably possible, as explicitly required by section 2033.220." (Katayama v. Continental Investment Group (2024) 105 Cal.App.5th 898, 907.) A party not in possession of information or knowledge necessary to respond to a request for admission must state in the answer that "a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter."

(Code Civ. Proc., § 2033.220, subd. (c).)

Here, Defendants have served substantially compliant responses to Plaintiff's RFAs in advance of this hearing. (Serpik Decl. ¶¶ 6, 7.) Thus, the RFAs are not properly deemed admitted pursuant to Code of Civil Procedure section 2033.280. However, sanctions are still warranted and mandatory under that section due to Defendants' failure to serve an initial timely response. Counsel alleges hourly rates of \$330 and \$350, which the Court credits. (Zaffos Decl. ¶ 16.) Counsel further alleges having spent 2.5 hours drafting the present motions at \$330 per hour, 1 hour spent drafting a reply at the same rate, and anticipates spending 0.5 hours attending the hearing on this matter at \$350 per hour. (Id. ¶ 17.) Counsel additionally alleges a \$60 filing fee with respect to each of the two motions. (Ibid.) Because of the near identical nature and simplicity of the two motions, the Court finds 1.5 total hours drafting them a more appropriate estimate. Thus, Plaintiff is awarded \$1,120 in sanctions ($[\$330 \text{ per hour}] \times [2.5 \text{ hours}] + [\$350 \text{ per hour}] \times [0.5 \text{ hours}] + 2 \times [\$60 \text{ filing fee}] = \$1,120$), payable by Defendants' counsel.

Conclusion:

The Court grants the motion in part. The matters are not deemed admitted but Plaintiff is still awarded \$1,120 in sanctions payable by Defendants' counsel within 30 days.